

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION (OVERSEAS CONTRACTING ACTIVITIES)**

1. I recommend that Embassy Georgetown use other than full and open competition for the acquisition of goods and services (*replacement parts*) The estimated cost is US\$ 47,930.
2. Nature and/or description of the action being approved.
Procurement of spares for the Chancery Main Chiller
3. A description of the supplies or services required to meet the agency's needs.

Multistack Chiller spare parts

4. An identification of the statutory authority permitting other than full and open competition.

6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited (for sole source acquisitions; also required for unusual and compelling urgency where more than one offer will not be solicited).

The supplier Multistack is the sole authorized manufacturer and distributors of the equipment and its parts. The unit was custom built for the location and the parts are also sourced by referencing job number among other things.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable. The description should include whether a FedBizOpps notice was or will be publicized, as required by FAR 5.2, and if not, which exception under FAR 5.202 applies (e.g., blanket waiver provided in DOSAR 605.202-70).

Due to project requirement, any other supplier will have to go to Multistack to procure the parts. No other substitute parts or provider will be able to fulfil our requirement.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Should we purchase the parts through other suppliers the cost will significantly increase. The supplier will still have to go through Multistack, as a result time for delivery will also be increased.

8. A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.

Market Survey confirmed that Multistack is the only supplier of the spares needed.

9. Any other facts supporting the use of other than full and open competition.

N/A

10. A listing of sources, if any that expressed, in writing, an interest in the acquisition.

No sources since we are doing a single source acquisition.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

Multistack is the only supplier.

CERTIFICATIONS

I certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

09/25/2023
Date

Worren Lewis
Name
Title: Building Engineer Supervisor

Requirements Office

I certify that this submission is accurate, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

9/27/2023
Date

[Signature]
Contracting Officer